

MUTUAL CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This Confidentiality and Non-disclosure Agreement (the **Agreement**) shall commence on _____ (the **Effective Date**).

PARTIES:

A. with identity number,
whose
registered address is at
(XXXXXX);

B. with identity number, whose
registered address is at
(XXXXXX);

XXXXX and XXX shall be referred to as the **Parties**, and **Party** shall refer to any one of them as the context requires.

1. INTRODUCTION

- 1.1 The Parties will require to disclose to one another certain information of a confidential nature for the purpose of evaluating potential investment opportunities between them and/or transactions involving either Party and/or their investment in third Parties (the **Purpose**).
- 1.2 For the purposes of this Agreement, the Party disclosing the Confidential Information shall be referred to as 'the **Disclosing Party**' and the party receiving such information shall be referred to as 'the **Receiving Party**' and each Party may, depending on which Party is disclosing, at such time, be considered to be either the Receiving Party or the Disclosing Party.

THE PARTIES AGREE AS FOLLOWS:

2. DEFINITION OF CONFIDENTIAL INFORMATION

- 2.1 For purposes of this agreement, **Confidential Information** means any data or information that is proprietary to the Disclosing Party and not generally known to the public, whether in tangible or intangible form, whenever and however disclosed.
- 2.2 Confidential Information shall not include information which: (i) was known by the Receiving Party prior to receiving the Confidential Information from the Disclosing Party; (ii) becomes rightfully known to the Receiving Party from a third-party source not known by the Receiving Party to be under an obligation to the Disclosing Party to maintain confidentiality; (iii) is or becomes publicly available through no fault or failure to act by the Receiving Party in breach of this Agreement; (iv) is required to be disclosed in a judicial or administrative proceeding, or is otherwise requested or required to be disclosed by law

or regulation; and (v) is or has been independently developed by employees, consultants or agents of the Receiving Party without violation of the terms of this Agreement or reference or access to any Confidential Information (**Excluded Information**).

3. UNDERTAKINGS IN RESPECT OF CONFIDENTIAL INFORMATION

- 3.1 The Receiving Party will keep the Disclosing Party's Confidential Information confidential and will take all required steps to maintain the confidentiality of the Confidential Information, which will include applying the same degree of skill and care it takes to protect its own Confidential Information (including following relevant policies on confidentiality and protection of confidential and/or commercially sensitive information), but the Receiving Party shall never exercise less than a reasonable degree of care.
- 3.2 The Receiving Party shall ensure:
 - 3.2.1 that disclosure of the Confidential Information is restricted to those the employees, directors, advisors and/or agents (the **Representatives**) that require it, and shall limit access to only the Representatives;
 - 3.2.2 that the Representatives have signed a written undertaking to keep the Confidential Information secure and confidential;
 - 3.2.3 that the Confidential Information is used solely in relation to the Purpose; and
 - 3.2.4 that even where Excluded Information is excluded from protection, such Excluded Information shall nevertheless be treated as confidential.
- 3.3 The Receiving Party shall not:
 - 3.3.1 copy or duplicate in any form Confidential Information, or knowingly assist or allow anyone else to do so, except to the extent required in relation to the Purpose, and all such copies shall be the property of the Disclosing Party;
 - 3.3.2 disclose the Disclosing Party's Confidential Information, partially or completely, to any third party, except in accordance with the terms and conditions of this Agreement;
 - 3.3.3 reverse engineer, decompile or disassemble any computer programs and/or operating systems and/or platforms forming part of the Confidential Information; and
 - 3.3.4 use the Confidential Information in any manner that will cause loss or damage to the Disclosing Party.

4. DUTY TO NOTIFY

The Receiving Party will promptly notify Disclosing Party upon becoming aware of any:

- 4.1.1 loss;
- 4.1.2 disclosure;
- 4.1.3 duplication;
- 4.1.4 breach of confidentiality; or
- 4.1.5 use or misappropriation,

of Confidential Information whether authorised or not.

5. DATA PROTECTION

- 5.1 The Parties acknowledge that in the course of the discussions in relation to the Purpose, that some of the Confidential Information may constitute Personal Information or Special Personal Information as defined in the Protection of Personal Information Act, 2013 (**POPIA**).
- 5.2 To the extent that either of the Parties is acting in the capacity of Operator, as defined in POPIA, that Party warrants that it will duly observe all the obligations under POPIA that arise in relation to: (i) the processing of Personal Information and Special Personal Information; and (ii) the Responsible Party.
- 5.3 To the extent that either of the Parties is acting in the capacity of Responsible Party, as defined in POPIA, that Party warrants that it will duly observe all the obligations under POPIA that arise in relation to the Operator.

6. TERMINATION

- 6.1 This Agreement shall terminate upon written notice of one Party to the other, or otherwise three (3) years after the Effective Date of this Agreement.
- 6.2 The Receiving Party shall have no access to the Disclosing Party's Confidential Information after such date unless it has obtained the Disclosing Party's prior written consent.
- 6.3 The provisions of clauses 3, 5, 7, 8 and 9 shall survive any such termination.

7. DISPUTE RESOLUTION

- 7.1 Should any dispute, disagreement or claim arise between the parties (the **Dispute**) concerning this Agreement, the parties shall try to resolve the Dispute by negotiation. This entails that the one party invites the other in writing to a meeting to attempt to resolve the Dispute within 7 (seven) days from the date of the written invitation. If no such meeting is held, or the Dispute has not been resolved by such negotiation, the parties shall submit the Dispute to the Arbitration Foundation of Southern Africa (**AFSA**)-administered mediation, upon the terms set by the AFSA Secretariat.
- 7.2 Failing such a resolution, the Dispute, if arbitrable in law, shall be finally resolved in accordance with the rules of AFSA by an arbitrator appointed by AFSA.

8. MISCELLANEOUS

- 8.1 No variation, alteration or consensual cancellation of this Agreement shall be of any force or effect, unless in writing and signed by all the Parties.
- 8.2 No indulgence which a Party may grant to any other shall constitute a waiver of any of the rights of that Party, and who shall not thereby be precluded from exercising any of its rights against the other Party/ies which may have arisen in the past or which might arise in the future.

- 8.3 This Agreement constitutes the entire agreement between the Parties, and no representation by any of the Parties or their Representatives, whether made prior or subsequent to the signing of this Agreement, shall be binding on any of the Parties unless in writing and signed by all of the Parties.
- 8.4 This Agreement is particular to the Parties and shall not be assigned or otherwise transferred, in whole or in part, without the prior written consent of the other Party.
- 8.5 Although restrictions contained in this Agreement are considered by the Parties to be reasonable for the purpose of protecting the Confidential Information, if any such restriction is found by a court of competent jurisdiction to be unenforceable, such provision will be modified, rewritten or interpreted to include as much of its nature and scope as will render it enforceable. If it cannot be so modified, rewritten or interpreted to be enforceable in any respect, it will not be given effect, and the remainder of the Agreement will be enforced as if such provision was not included.
- 8.6 Clause headings in this Agreement are for reference only and shall not be used or relied upon in the interpretation of this Agreement.

9. ADDRESS FOR RECEIPT OF NOTICES AND DOCUMENTS

- 9.1 The Parties choose the following as their addresses for the receipt of any notices or documents in terms of this Agreement, including any documents that may be issued by a court of law:

- 9.1.1 **XXXXXXXXXX**
For the attention of: Mr _____

.....
Email:

- 9.1.2 **XXXXXXXXXX**
For the attention of: Mr _____

.....
Email:

- 9.2 Any Party may change the address given above on written notice to the others, provided that the address is a physical place of business and not merely a postal address.
- 9.3 Every notice shall be deemed, unless the contrary is proved, to have been received:
- 9.3.1 If delivered by hand, on the date of delivery;
- 9.3.2 If sent by e-mail, on the first business day after the date of successful transmission of the e-mail.

SIGNED AT _____ on this _____ day of _____ 2019.

FOR: XXXXXXXXXXXX, duly authorized to sign

AS WITNESS:

SIGNED AT _____ on this _____ day of _____ 2019.

FOR: XXXXXXXXXXXX, duly authorized to sign

AS WITNESS:
